



File No: EXP202302263

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) sent a letter by postal mail to a post office box requesting TELEFONICA DE ESPAÑA S.A.U. (hereinafter, the respondent) and TELEFÓNICA MÓVILES ESPAÑA, S.A. access to his personal data and “Transcription of the voice recordings made of all communications I have had with this company, including the recording of the contract (...)”

The claimant provides a copy of the exercise of the right and the acknowledgment of receipt issued by the postal service with a date of receipt of December 27, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to TELEFÓNICA MÓVILES ESPAÑA, S.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The entity indicated that “The legal entity interested in the reference file is Telefónica de España, SAU, so we would appreciate it if subsequent notifications were addressed to it.”

They state that “(...) Since there is no record of the receipt of the request for the exercise of rights regarding data protection, through the channels enabled and publicized for their management, it has not been possible to respond to a possible request. It is important to note that on December 28, 2022, there is a record of the receipt, via postal mail, of the complaint attached, as annex document No. 1, in which there is no record of the exercise of the right of access.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 19, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted Telefónica de España, SAU a hearing procedure, so that within ten working days it could present any arguments it deemed appropriate, stating that “(...) a response was given to the exercise of the right of access, through the letter attached, (...) sent to the email address provided in the complaint submitted to the Agency.”

They provide a letter addressed to the claimant in which they specify the data “(...) provided by you when contracting products and services from the Movistar brands (...)” which are the Name and Surname of the Holder, ID of the Holder, Contact Phones, Address, and Email. They also indicate that there are Voice Recordings.

FOURTH: After examining the letter submitted by Telefónica de España, SAU, it is forwarded to the claimant, so that, within fifteen working days, they may formulate any arguments they consider appropriate, stating, in summary, “(...) that the complaint was not only filed against Telefónica de España SAU, but also against Telefónica Móviles España, SA.

That the request for the exercise of the right of access was sent by certified mail to the address specifically enabled by both companies for the exercise of rights regarding personal data, according to the privacy policy of the respondents, available at <https://www.movistar.es/particulares/centro-de-privacidad/#Ejercicio>. Since this address is the same for both companies (Post Office Box 46155, 28080 Madrid), a joint request was submitted. (...)”

FIFTH: Having granted a hearing to the respondent entity, it reiterates its previous arguments.

It also indicates that “(...) We would like to highlight that the Movistar Fusión Service referred to by Mr. A.A.A. in his initial complaint is contracted by Telefónica de España SAU and may include associated mobile lines and terminals.

In this sense, in the response to the exercise of the right of access provided, the voice recording with the request for portability of mobile lines was included.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 19, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of the activity.

C/ Jorge Juan, 6

sanctioning, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obligated to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it.

C/ Jorge Juan, 6

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data involved, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy

of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

The subject of this resolution is the action of Telefónica de España, SAU regarding the request for the exercise of the right of access submitted by the complainant, as indicated in the admission agreement of April 19, 2023, without prejudice to the fact that this Agency independently analyzes the action of Telefónica Móviles España, S.A.U. regarding the aforementioned request.

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Before addressing the substance of the matter, it should be noted that, in accordance with data protection regulations, voice is also considered personal data. Therefore, the complainant would have the right to be provided with the voice recordings under the data protection regulations.

According to the European Data Protection Board, it must be assessed whether the information concerning the access requester and also third parties should be provided. The data controller must be able to demonstrate that the rights or freedoms of third parties would be adversely affected in the specific situation. The application of Article 15, paragraph 4, should not lead to the total denial of the data subject's request; it should only result in excluding or rendering illegible those parts that may have negative effects on the rights and freedoms of others.

Thus, the guidelines of the aforementioned Committee indicate that “...the right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must be balanced with other fundamental rights in accordance with the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/8

principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed, taking into account the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data...”

Consequently, the right of access to the recording of their voice requested by the complainant is indeed protected by the current data protection regulations.

In the case analyzed here, it has been established that the complainant exercised their right of access to their data and to the transcriptions of the voice recordings made of all communications they have had with this company, including the recording of the contract, and that, after the period established according to the aforementioned regulations, their request did not receive the legally required response; the respondent did not address the complainant's request nor did it provide evidence of this to this Agency.

The respondent states that they did not respond to the right of access because the exercise was not submitted through the established channel.

This Spanish Agency for Data Protection has verified that on the web address indicated by the complainant, <https://www.movistar.es/particulares/centro-de-privacidad/#Ejercicio>, it states that “Movistar guarantees the adoption of the necessary measures to ensure the exercise of these rights free of charge, being necessary for such exercise to attach a copy of your official identification document:

a. For the exercise of any of the rights mentioned above by sending a postal letter, indicating in the request which right is being exercised and which specific phone numbers that the client holds are affected by the mentioned request, to:

- Telefónica de España S.A.U. or Telefónica Móviles España S.A.U.: Ref. Data PO Box 46.155 28080 Madrid, or...”

Consequently, it has been established that the complainant exercised their right of access before the respondent through one of the means established for this purpose, and that the respondent did not address this right.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible must necessarily issue, even in the event that there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/8

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Consequently, since the necessary justification for the receipt of the response by the complainant informing them about the decision made regarding the request for the exercise of rights is not provided, it is appropriate to uphold the complaint that initiated this procedure.

Moreover, even in the event that it was not submitted through the provided channel or at the corresponding office, the receiving body must forward the received request to the assigned Data Protection Officer or to the department responsible for managing this type of requests.

Additionally, although it is appropriate for such request to be addressed to the address declared by the responsible party for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the responsible party is a valid destination for it, in accordance with Article 12 of the LOPDGDD, which states:

“The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible for the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party opted for another means.”

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge TELEFÓNICA DE ESPAÑA, S.A.U. with NIF A82018474 to, within ten working days following the notification of this resolution, send to the complainant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with what is established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to TELEFÓNICA DE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the

interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-140623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es